

Handling Harassment and Victimisation Complaints

Although the following guidelines are specifically related to harassment and victimisation, they can be applied to all forms of discrimination.

Alongside this general guidance, you should familiarise yourself with your organisation's own policies. They may set out specific harassment or victimisation procedures to follow, as well as details of the person within the company who handles complaints.

Concern raised or complaint made

The Advisory, Conciliation and Arbitration Service (Acas) is a UK public body that seeks to improve organisations and working life through the promotion and facilitation of strong industrial relations practice. Acas states that complaints or concerns may come from:

- Employees or job applicants who have experienced harassment or victimisation
- Employees who have witnessed harassment or victimisation
- Trade union representatives – if applicable – or employee representatives on behalf of other employees in the above situations¹

In the first instance, the complaint may well be raised to an individual's line manager, so it is vital that the manager is familiar with the company's harassment and victimisation procedures and knows who they should turn to if they need support.

As such, it is important that you as a manager take any harassment or victimisation complaints seriously and ensure that all team members do the same. Complaints should always be investigated thoroughly and dealt with in a timely way. They should also be considered in a manner that is fair and sensitive – not just to the employee who has experienced harassment or victimisation, but to anyone who has been accused of or witnessed it as well.

Initial investigation

The first step is to talk to the person who raised the complaint or concern. This should happen as soon as possible. Talking to them will help you to understand more about their issue and get a feeling for how it might best be dealt with and resolved.

In these discussions, as well as any further conversations, it is important to keep an open mind while gathering information. Acas advises listening intently to what people say and how they say it without making assumptions – setting aside judgement and any personal feelings you may have.² It is also

¹ Acas (2024). Handling bullying and discrimination. Approaching a complaint. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint> [Accessed 12 May 2025]

² Acas (2024). Handling bullying and discrimination. Approaching a complaint. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint> [Accessed 12 May 2025]

important to pay attention to how the situation has made the person feel and the impact it has had on them.

During these conversations with the person who made the complaint or concern, you should ask them what they would ideally like to happen. They might want one or more outcomes – for example, to only highlight the issue, receive advice or support, be given an apology, or make a formal complaint.

Although requests should always be taken into account and a way forward agreed together, you may feel that the complaint should be dealt with differently to the person making it. For instance, if it is a very serious matter – like sexual harassment – you might suggest that the complaint is handled formally as standard and explain why.

Acas recommends that if there is doubt about how to proceed, you should take a cautious approach by dealing with the complaint formally.³

Sensitivity, confidentiality and support

It can be difficult for people to speak up about harassment and victimisation. They may be upset or angry about what they have experienced or seen. It could also be an ongoing situation that has affected their mental health. Alternatively, they might be worried that they will be seen as a ‘troublemaker’ or treated unfairly if they make a complaint.

For these reasons, it is important to be sensitive to their situation and give them as much time and space as is necessary to ask questions and have them answered. It is also vital to reassure the person that any conversations – and potential subsequent investigations – will remain confidential.

In addition, you should tell the person who has raised the issue about any support that is available to them. This could be internal, such as access to a workplace harassment ‘ambassador’, counsellor, staff support network, or trade union or employee representative. Alternatively, the support might be external – other organisations and charities, for example.

While it is natural to focus on the person who has experienced harassment or victimisation, it is also important to provide support to those who have witnessed it – and those who have been accused of it. Line managers, along with other organisational teams such as HR, have a duty of care to their team members, and this includes supporting people’s mental health and wellbeing.

Further investigation

What happens after the initial discussions will depend on factors such as the seriousness of the issue, the evidence gathered so far, the wishes of the person who raised the complaint, and the

³ Acas (2024). Handling bullying and discrimination. Approaching a complaint. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint> [Accessed 12 May 2025]

organisation's policies and procedures for dealing with harassment or victimisation. It may well be that further investigation is necessary.

The Acas guidance is that the person conducting a formal investigation is "neutral and not involved in the complaint".⁴ If this is not possible, an external expert may need to be hired to investigate.

In any case, the investigator should gather evidence about the complaint from a variety of sources, including the person who raised it, the person the complaint is about, and any witnesses to the incident. The investigator should keep a record of the evidence, alongside how it was collected.

It may be that no action is needed, in which case the person who made the complaint should be notified and the decision documented. If further action is required, it will be either informal or formal.

Informal action

Acas recommends that, wherever possible, employers and managers deal with harassment and victimisation informally. 'Informal' in this context means "taking steps to resolve the complaint without using a formal grievance procedure".⁵

Sometimes, complaints can be resolved by speaking privately with the individuals concerned. For example, a manager or HR team member might speak to an employee to let them know that their behaviour was inappropriate. In such a situation, an apology might be acceptable to the person who made the complaint.

Another option is to arrange an informal meeting with the people concerned. However, this will only work – and should only be arranged – if everyone agrees to it. The meeting should take all views into consideration and be focused on resolving the issue in a way that is acceptable to everyone.

Similarly, mediation may sometimes be useful. This involves using an independent and impartial third party to help resolve an issue.

Formal action

Formal action may be necessary if an employee wishes to make a formal complaint, the complaint is serious, the situation could lead to disciplinary action, or the organisation's policies and procedures state that the type of complaint must be dealt with formally.⁶

⁴ Acas (2024). Handling bullying and discrimination. Formal complaints. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint/dealing-formally> [Accessed 12 May 2025]

⁵ Acas (2024). Handling bullying and discrimination. Informal complaints. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint/dealing-informally> [Accessed 12 May 2025]

⁶ Acas (2024). Handling bullying and discrimination. Formal complaints. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint/dealing-formally> [Accessed 12 May 2025]

Unless your organisation has a specific procedure for the type of complaint – this might be the case for sexual harassment, for instance – the standard grievance procedure should be followed. Again, any investigation should be carried out by a neutral, impartial person.

If the outcome of an investigation is that disciplinary action is necessary, HR should follow the organisation's formal disciplinary procedure.

People professionals should also be aware that harassment may be a crime – for example, if an employee is physically attacked, sexually assaulted, threatened with violence or is the victim of a hate crime.⁷

In these situations, HR should ask the employee concerned whether they want to report the incident to the police – and respect and support their decision. Before doing this, Acas suggests getting specialist advice, perhaps from a relevant charity or helpline, as well as considering legal consultation.

After a complaint

During and after dealing with any harassment or victimisation complaint, a detailed record of what happened must be kept. The Parliamentary and Health Service Ombudsman recommends that investigation records should include details such as all meeting minutes and the names of everyone present, witness statements, notes of updates or discussions about the case, actions taken, plans made, and information regarding how updates will be communicated.⁸

The employee who made the complaint should also be told whether their complaint was upheld, and, if so, what action will be or has been taken. This includes disciplinary action, where possible and appropriate.⁹

If a harassment or victimisation complaint is upheld, it may be necessary to move or transfer one of the parties to another part of the organisation. Where practical, the person who made the complaint should be allowed to decide whether or not they want to move, especially to avoid the perception that making a complaint results in punishment.¹⁰

⁷ Acas (2024). Hate crime at work. Available at: <https://www.acas.org.uk/hate-crime-at-work> [Accessed 12 May 2025]

⁸ Parliamentary and Health Service Ombudsman (N.D.). Carrying out the investigation. Available at: <https://www.ombudsman.org.uk/organisations-we-investigate/complaint-standards/nhs-complaint-standards/good-complaint-handling-guides/carrying-out-investigation> [Accessed 12 May 2025]

⁹ Acas (2024). Handling bullying and discrimination. After handling a complaint. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint/after-you-deal-with-complaint> [Accessed 12 May 2025]

¹⁰ Acas (2024). Handling bullying and discrimination. Formal complaints. Available at: <https://www.acas.org.uk/handling-a-bullying-discrimination-complaint/dealing-formally> [Accessed 12 May 2025]